



RVSR JOB AID

Procedure for Verifying a Claim is Ready to Rate

Complete the following tasks to verify that a claim is ready to rate.

Step 1: Verify the correct claims folder accompanies claim

Description:

Check the claims information on the application against file contents and confirm the:

- File name (always the Veteran's Name)
- File number (could be an assigned number or Veteran's Social Security number)
- Social Security Number (SSN)

Critical Elements:

The Veteran's name, VA File number, and Social Security Number found on the application must match with other documents in the Veteran's file. Some Veterans have the same or similar names. This check ensures that you have the correct documentation for the Veteran.



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Step 2: Verify the earliest date of claim

Description:

Verify when the claim was received, by reviewing the documents, looking at the dates signed and dates received. This date indicates the start date for development or processing, and may be used as the date of entitlement to benefits if the claim is received more than one year following discharge from service

Critical Elements:

- Claim application and evidence typically have date stamps on each document that shows when it was received in the regional office mailroom or the VA facility.
- Claims received by VONAPP or facsimile will have the time/date stamp on the document and will probably not have date stamp from the regional office mailroom.
- The date an application was signed is often used when other dates are not available.

Step 3a: Verify the required forms are present if the claim is dated prior to 3/24/2015

Description:

Prescribed forms for **formal claims**:

- VA Form 21-526, Veteran's Application for Compensation and/or Pension
- VA Form 21-526c, Pre-Discharge Compensation Claim
- VA Form 21-526EZ, Application for Disability Compensation and Related Compensation Benefits

Informal claim = An original claim for benefits not filed on one of the prescribed forms. The only requirement is that it identifies the benefit sought by the claimant.



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Critical Elements:

See M21-1, Part III, Subpart ii.2.B - Claims for Disability Compensation and-or Pension, and Claims for Survivors Benefits.

Step 3b: Verify the appropriate forms are present if the claim is dated on or after 3/24/2015

Description:

Effective March 24, 2015, VA will only recognize compensation, pension, survivors, and related claims if they are submitted on the required standard forms. Use the **Appropriate VA form by Benefit** job aid to determine the appropriate form based on the benefit being claimed.

Claims not completed on a standardized form will be considered a request for application and a standardized form will be sent to the claimant.

Critical Elements:

See M21-1, Part III, Subpart ii.2.B - Claims for Disability Compensation and-or Pension, and Claims for Survivors Benefits.

Step 4: Verify Application/Claim is Substantially Complete

Description:

A substantially complete application must include:

- Claimant's name and relationship to the Veteran (if applicable)
- Sufficient service information for VA to verify the Veteran's service (if applicable)
- Issue claimed



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- Disability or disabilities on which the claim for benefits is based
- Signature of the claimant or another legally authorized individual

Must be present on some document within the claims folder:

- Claimant's Social Security Number
- Claims folder number
- Verification of service

Critical Elements:

The disability or disabilities on which the claim for benefits is based that the issue is being claimed is due to another influence, such as Agent Orange herbicide exposure.

Keep in mind that a formal claim may be submitted via a paper copy or online through VONAPP. While paper applications must be signed, VONAPPs do not need to be signed since they are submitted online.

If the form or claims folder is missing data essential to claim development, return the claims folder to the VSR.

Step 5: Verify the Veteran's status

Description:

Must include:

- Evidence that he or she meets active duty service requirements
- Evidence of duty periods, which includes service dates
- Evidence of character of discharge

Use documentary evidence of service dates and character of discharge duty periods to verify a Veteran's status.

This includes:



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- DD-214, Certificate of Release or Discharge from Active Duty (or its equivalent)
- 3101 Information Request (with a response)
- Original Certificate of Discharge (must meet conditions in 38 CFR 3.203)
- VBA computer information showing active duty dates and character of service (per M21-1 Part III, Subpart ii, 6.B – Service Requirements and Verification of Eligibility)

Critical Elements:

Active service includes:

- Active duty
- Any period of active duty for training during which a person is disabled or dies from a disease or injury incurred or aggravated in the line of duty, or an acute MI, a cardiac arrest, or a CVA while proceeding directly to, or returning directly from, a period of active duty for training.
- Any period of inactive duty training during which a person is disabled or dies from an injury incurred or aggravated in the line of duty, or from “covered diseases” (limited to heart attack, cardiac arrest, or stroke)

If a Veteran’s status cannot be verified, return the file to the VSR.

References:

38 CFR 3.6 (a) Duty periods – Active military, naval, and air service

38 CFR 3.6 (b) Duty periods – Active duty

Step 6: Scan folder for accompanying documents



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Description:

Includes other correspondence or documents obtained for or provided by the claimant that may accompany the application.

What do I do if I do not have the correct claims folder?

If you find that the incorrect claims folder accompanies the claim, return both to the Veterans Service Representative (VSR) for correction.

What if the Veteran does not include her claims folder number and the correct claims folder cannot be identified?

If the Veteran does not include his or her claims folder number and you are unable to identify the correct claims folder, return the claim to the Veteran or sender with a cover letter requesting further detail. If you can determine who the Veteran is, the intake clerk can add the claims file number to the top of the document. If the Veteran is deceased and the claim is from the Veteran's widow, then an XC is added in front of the file number or an XSS is added in front of the Social Security number, if applicable.